

THIS GAS SALES AND PURCHASE AGREEMENT

Is made this 22nd day of November 2024

BETWEEN:

(1) **MSN Energy Resource Limited ("MSN")**, a company incorporated under the laws of the Federal Republic of Nigeria, with its registered Office at the 5th Floor, Tower C, Churchgate Plaza, Cadastral Zone AO, Central Business District, Abuja, Nigeria (hereinafter referred to as the "**Seller**", which expression shall, where the context so admits, include its successors-in-title and permitted assigns), of the one part;

AND

(2) **South Atlantic LNG West Africa Limited ("SA LNG")** a company incorporated under the laws of the Federal Republic of Nigeria, with its registered office at H20, 2/3 Onikoyi Lane Parkview estate, Ikoyi, Lagos (hereinafter referred to as the "**Buyer**", which expression shall, where the context so admits, include its successors in title, and assigns), of the other part.

The Seller and the Buyer are herein collectively referred to as "**Parties**" and individually as "**Party**".

WHEREAS:

- (A) The Seller is an indigenous Nigerian company engaged in the business of spot gas trading, gas transport, virtual pipeline solutions, general gas advisory and contract management.
- (B) The Seller has Gas available for sale at the Delivery Point for the purpose of meeting its obligations under this Agreement.
- (C) The Buyer is an indigenous mid to downstream oil and gas products producer and supplier and has agreed to take delivery of gas from the Seller on an uninterruptible basis for a fixed term.
- (D) The Parties wish to enter into this Agreement to set out the terms for the Gas Sales and Purchase Agreement (GSPA) by the Seller to the Buyer.

Parties hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Gas Sale and Purchase Agreement (GSPA), except if the context requires otherwise, the following terms have the following meanings:

“Affiliate” means a company or other entity that directly or indirectly through one or more intermediaries, controls, or is controlled by, or is under common control of a Party hereto. For this purpose, a Party is under the “control” of another where such Party has (i) direct or indirect ownership of more than 50% of the issued voting shares of a company entitled to vote or ownership of equivalent rights to determine the decisions of such a company or other entity and (ii) the right to appoint or remove a majority of the board of directors or management of such a company or other entity or of any other person which controls that company or other entity or otherwise controls or has the power to control the affairs and policies of that company or other entity or of any other person which controls that company or other entity.

“Annual Contract Quantity” means 1,825mmscf of Gas.

“Anti-Bribery Laws and Obligations” means for all Parties, the laws, statutes, rules, guidelines and regulations governing this Agreement or the business conduct of the Parties which prohibit bribery and other forms of corruption, as prescribed under Nigerian laws or any Applicable law.

“Applicable Law” means any law, guideline, regulation, policy, decree, order or ruling or mandatorily applicable standards or requirements or actions (in each case whether Federal, State, Local or otherwise) adopted, issued, made or promulgated by a Governmental Authority including the Petroleum Industry Act, 2021.

“Authorisation” means any approval, consent, exemption, licence, order or permission of any Governmental Authority which is or was necessary for the performance by a Party of any covenant or obligation in accordance with this Agreement.

“Buyer’s Designated Account” means the account communicated by the Buyer to the Seller for the receipt by the Buyer of payments under this Agreement.

“Change in Law” means the occurrence of any of the following after the Effective Date:

- (a) the enactment or issuance of any new law, regulation or policy;
- (b) the modification or repeal of any law, regulation or policy;
- (c) the commencement of any law, regulation or policy that was not in effect as at the Effective Date;
- (d) the imposition of a requirement for approval of a Governmental Authority not required as at the Effective Date; or
- (e) after the grant of approval of a Governmental Authority, a revocation or termination of that approval, a change in the terms or conditions of that approval, imposition of additional terms or conditions to that approval, or if granted for a limited period, a

failure to extend or renew that approval on a timely basis after the timely submission of an application for extension or renewal, or being renewed on terms or subject to conditions that are materially less favourable to the affected Party.

“Conditions” shall have the meaning ascribed thereto in Article 2.2.

“Contract Month” is a period of time during the Contract Period beginning at eight (8.00) a.m., local time, on the first Day of any calendar month and ending at eight (8.00) a.m., local time, on the first Day of the next succeeding calendar month, provided that:

- (a) the first Contract Month shall commence on the Start Date and end on the last Day of the calendar month in which the Start Date occurs;
- (b) the last Contract Month shall commence on the first Day of the calendar month in which this Agreement terminates or expires and shall end on the Day this Agreement terminates or expires.

“Contract Year” means:

- for the first Contract Year, the period commencing at 8.00 a.m. on the Date of First Gas Delivery and ending at 7.59 a.m. on the following 1st Day of January;
- for each subsequent Contract Year other than the last Contract Year, the twelve (12) Month period commencing at 8.00 a.m. on the 1st Day of January and ending at 7.59 a.m. on the following 1st Day of January; and
- for the last Contract Year, the period commencing at 8.00 a.m. on the 1st Day of January immediately preceding the Termination Date and ending at 7.59 a.m. on the Termination Date;

“Contract Period” means a period of Five (5) years from the Start Date

“Contract Price” means the price agreed in Article 8.

“Contract Quantity” means 9,125mmscf of Gas.

“Day” means a period of 24 hours commencing at 0800 hours and **“daily”** shall be construed accordingly.

“Delivery Point” means the inlet flange of an entry point to the ELPS at a location agreed to by the Seller, the Buyer and the Transporter.

“Effective Date” shall have the meaning ascribed thereto in Article 2.4.

“ELPS” means the Escravos Lagos Pipeline System.

“Excess Gas” means any quantity of Gas nominated for any Day by the Buyers and made available for delivery by the Seller in excess of the MDCQ for that Day in accordance with this Agreement.

“Execution Date” is the date this GSPA is fully executed by all parties thereto, as indicated in the first paragraph of page 1.

“Force Majeure” shall have the meaning ascribed thereto in Article 12.1.

“Gas” means a hydrocarbon mixture consisting primarily of saturated light paraffins such as methane and ethane, both of which are gaseous under atmospheric conditions. The mixture also may contain other hydrocarbons, such as propane, butane, pentane, and hexane.

“Gas Consumption Certificate” means the certificate or formal notice issued by the Transporter to the Buyer specifying the Buyer’s actual offtake for each Contract Month.

“Governmental Authority” means any federal, state, or local government in Nigeria or any subdivision, agency, commission or authority thereof, except the Nigerian National Petroleum Company Limited and its affiliates.

“Invoice Dispute Notice” shall have the meaning ascribed thereto in Article 9.6.

“Daily Contract Quantity” shall have the meaning ascribed in Article 5.1

“Maintenance DCQ Reduction” shall have the meaning ascribed in Article 11.1.

“Monthly Invoice” shall have the meaning ascribed thereto in Article 9.1.

“Payment Security” shall have the meaning ascribed thereto in Article 2.2.1.

“Person” shall include natural and juristic person (including corporations and governmental agencies).

“Public Official” means an elected or appointed official, employee or agent of any national, regional or local government/state or department, agency or instrumentality of any such government/state or any enterprise in which such a government/state owns, directly or indirectly, a majority or controlling interest; an official of a political party; a candidate for public office; and any official, employee or agent of any public international organisation.

“Reasonable Endeavours” means the efforts that a prudent person, in the course of performing a contractual obligation under this Agreement towards achieving a result, would reasonably use in similar circumstances to ensure that such result is achieved as expeditiously as possible; provided, however, that an obligation to use Reasonable Endeavours under this Agreement does not require the Party subject to that obligation to take actions that would result in an adverse change in the benefits of this Agreement and the transactions contemplated hereunder to such Party.

“Seller’s Account” means the account held by the Seller with account name: MSN Energy Resource Limited.

“Start Date” means the Day on which the Seller commences delivery of Gas at the Delivery Point after the Effective Date.

“Transporter” shall mean, the NNPC Gas Infrastructure Company Limited (NGIC), the company responsible for the transportation of Gas volumes through the gas pipeline network.

“Termination Date” has the meaning assigned to it in Articles 2.5 and 13.

“Third Party” means any Person other than a Party or its Affiliates.

“WAGP Specifications” means the Gas specifications in accordance with the West African Gas Pipeline Project.

“Working Day” means any day other than (i) Saturday, (ii) Sunday and (iii) a public holiday in Nigeria as declared by the Federal Government of Nigeria.

1.2 Interpretation

1.2.1 The headings in this GSPA are for convenience and do not affect its interpretation.

1.2.2 In this GSPA:

- (a) a reference to “\$” or “US Dollars” or “USD” is to the lawful currency for the time being, of the United States of America;
- (b) a reference to “₦” or “Naira” is to the lawful currency for the time being, of the Federal Republic of Nigeria;
- (c) a reference to an article, clause or appendix is a reference to an article, clause or appendix of this GSPA;

- (d) a reference to any Party or any person includes such Party's or such person's successors and permitted assigns; and
- (e) words denoting the singular include the plural, and vice versa.

2. EFFECTIVENESS AND DURATION

2.1 DURATION

2.1.1 This Agreement shall, subject to Article 2.2, come into force on the Execution Date and shall terminate upon the earlier event to occur of:

- (a) the fifth (5th) anniversary of the Start Date; or,
- (b) when the **Contract Quantity** has been made available for delivery by the Seller at the Delivery Point; or
- (c) any other termination event in accordance with Article 13.

2.1.2 If within Twelve (12) Contract Months but not less than Six (6) Contract Months prior to the end of the Contract Period, the Buyer or the Seller serve on the other Party a notice for the extension of the Contract Period, then the Parties shall negotiate in good faith and may extend the Contract Period for an additional period as agreed between Parties, in accordance with the new terms to be agreed by the Parties.

2.1.3 The Start Date shall be five (5) Days after the Effective Date.

2.2 EFFECTIVENESS

The obligations of the Parties under this Agreement, shall become effective only upon the satisfaction or waiver of the following conditions (the "**Conditions**"):

2.2.1 The Buyer has made a revolving payment into the Seller's account for a minimum amount equal to the aggregate Daily Nominated Quantity for the following two contract months multiplied by the contract price applicable for such period ("Payment Security") for the purpose of backstopping the monthly payment obligation of the Buyer in accordance with Article 9 of this Agreement.

- 2.2.2 The Buyer has executed and made effective all necessary agreements for Gas transportation from the Delivery Point by the Transporter in line with the provisions of this Agreement;
- 2.2.3 The Buyer has obtained all Authorisations and internal company consents, authorisations and approvals necessary to purchase, receive and use Gas as contemplated in this Agreement;
- 2.2.4 The Seller has obtained all Authorisations and internal company consents, authorisations and approvals necessary to sell Gas as contemplated in this Agreement; and
- 2.2.5 The Buyer has obtained from the Seller a written confirmation of Gas supply availability communicating that a quantity of gas has been allocated to the Buyer necessary to meet the Seller's Gas supply obligations under this Agreement.
- 2.3 The Conditions in Articles 2.2.1, 2.2.2 and 2.2.3 may only be waived by the Seller, while the Conditions in Articles 2.2.4 and 2.2.5 may only be waived by the Buyer.
- 2.4 Upon satisfaction of each Condition, the Party responsible for satisfying the Condition shall notify the other Party. Upon satisfaction or waiver of all of the Conditions, the Buyer shall notify the Seller that all Conditions have been satisfied and the date of such communication shall be the "Effective Date"
- 2.5 Unless the Parties otherwise agree in writing, the Effective Date shall occur on or before Twenty-One (21) months from the Execution Date failing which the Buyer or Seller may terminate this Agreement.
- 2.6 For the avoidance of doubt, the Seller shall have no obligation to sell or make Gas available for delivery to the Buyer, and the Buyer shall have no obligation to pay for or take delivery of Gas, until the Effective Date.

3. SUPPLY AND PURCHASE

- 3.1.1 With effect from the Start Date, the Seller shall sell or make available for delivery the Daily Contract Quantity to the Buyer and the Buyer shall take delivery of and shall pay for Gas, or shall pay for Gas if not taken delivery of, in accordance with this Agreement.
- 3.1.2 Pursuant to Article 2.2.1, the Buyer is obligated to post, replenish and maintain the Payment Security for the duration of this Agreement. All costs associated with the posting, renewal and maintenance of the Payment Security shall be for the account of the Buyer.

3.2 GAS SPECIFICATION

- 3.2 (i) The Seller shall ensure that (except as otherwise permitted in accordance with this Agreement), all quantities of Gas made available for delivery or to be made available for delivery by the Seller to the Buyer at the Delivery Point in accordance with this Agreement shall conform to WAGP Specifications at the time of delivery.
- 3.2 (ii) If at any time the Seller delivers Gas that does not conform to WAGP Specifications, the Seller shall indemnify and hold harmless the Buyer against any losses which are a direct and sole consequence of the delivery of such off-specification Gas.

4. FACILITIES

4.1 Seller's Facilities

- 4.1.1 The Seller shall use its facilities to make available at the Delivery Point commencing on the Start Date, a quantity of Gas which is at least equal to the Daily Contract Quantity for each Day of the Contract Period.

4.2 Buyer's Facilities

- 4.2.1 The Buyer shall use its facilities to take at the Delivery Point commencing on the Start Date, a quantity of Gas which is at least equal to the Daily Contract Quantity, for each Day of the Contract Period.

5. GAS QUANTITIES

5.1 The Daily Contract Quantity (DCQ)

In respect of each Day of each Contract Year during the Delivery Period, the DCQ for Gas to be made available for delivery by the Seller shall, subject to Article 11, be 5mmscf/d.

5.2 Maximum Quantity

Except where the Seller otherwise agrees in writing, the Seller shall not be obliged to deliver to the Buyer an aggregate quantity of Gas in respect of the Contract Period exceeding the **Contract Quantity** and in respect of each Contract Year, exceeding the ACQ for that Contract Year.

6. EXCESS GAS

6.1 Seller's obligation

- 6.1.1 Where the Buyer wishes to request that the Seller makes available for delivery Excess Gas to the Buyer at the Delivery Point:

6.1.2 The Buyer shall give at least three (3) Days' notice of such request to the Seller through a notice (the "**Excess Gas Notice**").

6.1.3 The Seller shall within thirty-six (36) hours give notice to the Buyer of whether and/or to what extent the Seller is willing to make available Excess Gas in response to the Buyer's request.

6.1.4 Where the Seller confirms its willingness to make available Excess Gas pursuant to Article 6.1.2, the Seller shall use Reasonable Endeavours to make Excess Gas available for delivery in response to the Buyer's request.

6.2 Excess Gas Price

All quantities of Excess Gas made available for delivery to the Buyer by the Seller at the Delivery Point shall be paid for by the Buyer at the Contract Price.

7. TAKE OR PAY

7.1 The Buyer's Obligation

In respect of each Contract Year, the Buyer shall take delivery of and shall pay for, or shall pay for if not taken delivery of, a quantity of Gas which at a minimum shall be equal to the Take or Pay Quantity.

7.2 The Take or Pay Quantity

In respect of each Contract Year, the Take or Pay Quantity shall be a quantity of Gas equal to eighty percent (80%) of the Contract Quantity applicable to such Contract Month.

8. PRICING

8.1 The Contract Price shall be \$3.60/mmscf payable in Naira equivalent using the applicable US Dollars/Naira conversion rate which shall be the monthly average of the central quotations for buying and selling US Dollars as published by the Central Bank of Nigeria for the supply Contract Month and in accordance with the below breakdown:

Gas Price	2.60\$/mmscf
Primary Transportation payable	1.00 \$/mmscf
Delivered Gas Price to Buyer-	3.60\$/mmscf

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8.2 Price Review

8.2.1 Where applicable, the Buyer or the Seller shall be entitled to seek a review of the Contract Price if as a result of a Change in Law, increase in gas price, or any governmental action, the Buyer or the Seller suffers a Material Financial Impact in any Contract Year.

8.2.2 In the event that a price review is desired by any Party (the Affected Party), such Party shall notify the other Party in writing and shall present relevant data to justify the necessity for a review of the Contract Price (the "**Price Review Notice**").

8.2.3 The Buyer or the Seller shall within fourteen (14) Days after the delivery of the Price Review Notice by the Affected Party in accordance with Article 8.2.2 meet to discuss in good faith and shall within ninety (90) Days thereafter:

- (a) determine whether the review of the Contract Price as requested by the Affected Party is justified and, if so,
- (b) determine a new Contract Price.
- (c) Where Parties agree on a new Contract Price, the new Contract Price shall be effective from the date when the new Contract Price is agreed by the Parties.

8.2.4 Where the Buyer and the Seller fail to agree on the new Contract Price in accordance with Article 8.2.3, either the Buyer or the Seller may refer the price review to an Arbitrator for determination in accordance with Article 14

8.2.5 If the Arbitrator determines a new Contract Price, such new Contract Price shall be deemed to apply and shall be applied from the date of the Arbitrator's decision and/or award.

9. INVOICE AND PAYMENT

9.1 After each Contract Month, following reconciliation of actual Gas offtake and upon receipt of the Gas Consumption Certificate from the Transporter, the Seller shall issue to the Buyer, an invoice specifying the amount to be paid by the Buyer based on the Buyer's actual offtake as contained in the Gas Consumption Certificate ("**Monthly Invoice**").

- 9.2 Upon receipt of the Monthly Invoice, the Buyer shall pay the amount specified into the Seller's account within five (5) Working Days using the applicable US Dollars/Naira conversion rate which shall be the monthly average of the Central quotations for buying and selling US\$ dollars as published by the Central Bank of Nigeria for the supply Contract Month.
- 9.3 Where the Buyer fails to make Payment after five (5) days from the date of receipt of the Monthly Notice, the Seller may, upon giving three (3) Working Days' notice to the Buyer of its intention to do so, draw from the Payment security, the amount contained in the Monthly Invoice for the purpose of satisfying the Buyer's obligation to pay for Gas off-taken in that Contract Month as shown in the Gas Consumption Certificate. The Seller's right to draw from the Payment Security, shall not apply where the Buyer makes the payment before the expiration of the three (3) working days' of the Seller's intention to draw from the payment Security.
- 9.4 Where the Buyer fails to replenish the Payment Security after five (5) days from the date of receipt of the Seller's notice to draw from the Payment security, the Seller may after giving three (3) working days' notice to the Buyer of its intention to do so, suspend the delivery of Gas to the Buyer. The Seller's right to suspend the delivery of Gas under this Article 9.4 shall not apply if the Buyer makes the payment before the expiration of the three (3) Working Days' notice of the Seller's intention to suspend delivery of Gas.
- 9.5 After each Contract Month, where the reconciliation of the Buyer's actual offtake as contained in the Gas Consumption Certificates shows that the cumulative quantity of Gas off-taken by the Buyer is less than the Daily Contract Quantity for reasons of the Seller's inability to deliver such Gas (other than Force Majeure in accordance with Article 12 or Scheduled Maintenance of the Seller's Facilities in accordance with Article 11), such quantity of Gas equal to the difference between the Daily Contract Quantity and the quantity of Gas which the Seller has delivered for such Contract Month shall be "**Shortfall Gas**", provided that where there is any Shortfall Gas at the end of a Contract Month, then the first quantities of Gas made available for delivery by the Seller to the Buyer at the Delivery Point in the next Contract Month up to the amount of the aggregate of the outstanding Shortfall Gas shall be paid for by the Buyer at the Shortfall Gas Price and the outstanding Shortfall Gas aggregate shall be reduced by such quantity of Gas. The price for the Shortfall Gas shall be an amount equal to 90% of the Contract Price for the Contract Month in which the Shortfall Gas accrued ("**Shortfall Gas Price**").
- 9.6 The Buyer shall be entitled to dispute any invoice by written notice to the Seller within three (3) Working Days of receipt of the invoice by the Buyer (the "**Invoice Dispute Notice**"). In the event the Buyer disputes an invoice, the Parties shall seek to resolve the dispute by direct consultation, provided that if the Parties are unable to reach such agreement within thirty (30) days from the issuance of the Invoice Dispute Notice by the

Buyer, the dispute shall be resolved in accordance with Article 14 of this Agreement.

10. REPRESENTATIONS AND WARRANTIES

Each Party hereby represents and warrants to the other Party that:

- 10.1 It has full power to enter into and perform its obligations under this Agreement, and the obligations assumed by it constitute valid, legal and binding obligations;
- 10.2 The signatories to this Agreement on its behalf are duly authorised and competent to execute and deliver this Agreement;
- 10.3 The execution, delivery and performance of this Agreement does not, and will not, constitute a violation of any legal or contractual constraint validly applied to each Party;
- 10.4 There are, to the best of its knowledge, no existing or threatened legal, contractual, or financial matters of any kind that could reasonably be expected to affect materially either its ability to perform its obligations under this Agreement or the enforceability of this Agreement; and
- 10.5 No information given by it in relation to this Agreement contains any material misstatement of fact or omits to state a fact that would be materially averse to the enforcement of the rights and remedies of the other Party.

11. MAINTENANCE

11.1 Scheduled Maintenance Rights

11.1.1 To enable the Scheduled Maintenance of Seller's Facilities and Buyer's Facilities, each Party shall have the right in each Contract Year to give notice of a reduction to the DCQ (the "**Maintenance DCQ Reduction**") in respect of certain Maintenance Days during the next Contract Year in accordance with this Article 11.

11.1.2 Each Party shall give notice to the other Party of its requirements for Scheduled Maintenance for the next Contract Year by no later than the last Day of November in the Contract Year preceding the Contract Year in which the Scheduled Maintenance is required to be performed (except in the case of the first Contract Year, when the Maintenance Notification shall be given by each Party by no later than thirty (30) Days after the Effective Date).

11.1.3 Each Maintenance Notification shall specify:

- (a) the dates for the Maintenance Days in the next Contract Year during which a Maintenance DCQ Reduction shall apply;
- (b) the prevailing DCQ and the required Maintenance DCQ Reduction for each Maintenance Day (provided that in respect of any Maintenance Day, the Maintenance DCQ Reduction may be a reduction of the DCQ to zero); and
- (c) the nature of the Scheduled Maintenance which is to be performed on each Maintenance Day.

11.1.4 If a Party fails to give a Maintenance Notification in accordance with Article 11.1.2 and/or Article 11.1.3, then such Party shall be deemed to have given a Maintenance Notification which specifies a requirement for no Scheduled Maintenance in respect of the next Contract Year.

11.1.5 The Parties shall cooperate to ensure that in respect of each Contract Year their respective Maintenance Days shall coincide.

11.1.6 The Maintenance Notification issued by the Buyer shall include the requirements for Scheduled Maintenance of the Transporter's Facilities.

12. FORCE MAJEURE

12.1 "**Force Majeure**" shall mean any event or circumstance or combination of events or circumstances including their effects that are beyond the reasonable control of the Seller or the Buyer and that materially and adversely affects the ability of the Seller or the Buyer to perform any of its obligations under this GSPA, but only to the extent that:

12.1.1 such circumstance, event or condition, despite the exercise of diligence, cannot be prevented, avoided or overcome by the affected Party;

12.1.2 the affected Party has taken all reasonable precautions, due care and measures to prevent, avoid or overcome the effect of such circumstance, event or condition on its ability to perform its obligations under this Agreement and to mitigate its consequences; and

12.1.3 such circumstance, event or condition is not the direct result of a breach or failure by the affected Party to perform any of its obligations under this GSPA.

12.2 Force Majeure shall include the following events, in each case only to the extent that such event satisfies the requirements above:

12.2.1 Act of God;

12.2.2 any act of war (whether declared or undeclared), invasion, armed conflict or act of a foreign enemy, blockade, embargo, revolution, riot, insurrection, vandalism, civil commotion, act of terrorism, or sabotage;

12.2.3 national strikes, or works to rule which are widespread or nationwide, of a political nature but excluding any such matters involving only the workforce of the claiming Party, its contractors, its subcontractors or suppliers;

12.2.4 lightning, fire, earthquake, flood, storm, cyclone, typhoon, tornado or other natural calamities; and epidemic or plague.

12.2.5 acts of government, including but not limited to the issuance or promulgation by the Government Authority having jurisdiction of any court order, law, statute, ordinance, rule, regulation or decree that directly affects the ability of a Party to perform any obligation contained in this Agreement inclusive of the revocation of any Authorisation, except where such revocation arises from any breach or default by the Seller or Buyer; and

12.2. 5 any event or circumstance which affects the Transporter's ability to transport the Gas which the Seller supplies to the Buyer and such Force Majeure Event is declared by such Transporter.

12.3 Force Majeure shall expressly exclude the following conditions:

12.3.1 normal wear and tear or inherent flaws in materials and equipment or breakdowns of equipment;

12.3.2 any event caused by, or connected with, the affected Party's (i) negligent or intentional acts, errors or omissions, (ii) failure to comply with any Applicable Law or (iii) breach of, or default under, this Agreement;

12.3.3 unavailability of (i) refined fuel products or transportation, (ii) water supply, or (iii) electric transmission or distribution service in whole or part, except to the extent such unavailability is itself due to a Force Majeure; and

12.3.4 failure to make a payment of money in accordance with the Party's obligations under this Agreement.

- 12.4 A claiming Party shall be relieved from the duty to perform its obligations under this Agreement (other than an obligation to make a payment when due and payable) and any liability for failure to perform such obligations, in whole or in part, under this Agreement to the extent such non-performance is caused by the occurrence of a Force Majeure. For the avoidance of doubt, the Buyer shall not be required to pay for quantities of Gas which the Seller has not delivered or the Buyer is unable to take delivery of as a result of a Force Majeure.

13. TERMINATION

- 13.1 This GSPA shall terminate on the first to occur of:

13.1.1 written agreement of the Parties to terminate this Agreement;

13.1.2 termination by the Seller or the Buyer in accordance with Article 2.5.

13.1.3 termination by a Party by reason of failure by the Parties to renegotiate the terms of this Agreement following a Change in Law which fundamentally alters the economic underpinnings of this GSPA;

13.1.4 termination by the Seller or the Buyer by written notice to the other Party on the ground that a Force Majeure has continued for a consecutive period of six (6) months or a cumulative period of six (6) months within a twelve (12) month period;

13.1.5 termination by the Seller by written notice to the Buyer by reason of the Buyer remaining in payment default after the expiration of a period of thirty (30) Days following the exercise of the Seller's right to suspend delivery of Gas in accordance with Article 9.5.

- 13.2 Termination shall be without prejudice to - (i) the rights and obligations of the Parties existing (or that have accrued) at the date of termination; and, (ii) the provisions of Article 1 (Definitions and Interpretation), Article 14 (Dispute Resolution), Article 15 (Governing Law), Article 16 (Notices) and this Article 13.2, which shall remain in effect.

14. DISPUTE RESOLUTION

- 14.1 The Parties shall endeavour to resolve any dispute arising out of or connected with the interpretation, or any allegation or actual breach of this Agreement by mutual consultation, within seven (7) Working Days of the occurrence of same.

- 14.2 Any dispute, controversy or claim arising out of or in connection with this Agreement, including any question regarding its existence, validity or termination which cannot be mutually resolved by mutual consultation in accordance with Article 14.1 above, shall be referred to arbitration in accordance with the provisions of the Arbitration and Mediation Act of 2023 ("Arbitration Act") or any statutory re-enactment or modification thereof.
- 14.3 The arbitral panel shall consist of one (1) arbitrator jointly appointed by the Parties within fourteen (14) Days following the period of seven (7) Working Days stated in Article 14.1 above. Where the Parties are unable to agree on the choice of the members of the panel within the said fourteen (14) days, the arbitrator shall be appointed by the Chairman (for the time being) of the Chartered Institute of Arbitrators UK (Nigeria Branch). The venue and seat of arbitration shall be Abuja, Nigeria and the arbitral proceedings shall be conducted in English language.
- 14.4 The award of the Arbitrator so appointed shall be final and binding on the Parties unless set aside in accordance with the provisions of the Arbitration Act.

15. GOVERNING LAW

This GSPA shall be exclusively governed by, and construed in accordance with, the laws of the Federal Republic of Nigeria.

16. NOTICES

- 16.1 All notices and other communication required or permitted hereunder shall be in writing and shall be mailed by overnight courier, or delivered either by hand or by email, addressed to a Party at the address of such Party set forth below (or to such other address as such Party may have specified by written notice given to the other Party hereto).

If to the Seller:

The Chief Executive Officer,
MSN Energy Resource Limited
5th Floor, Tower C
Churchgate Plaza, Cadastral Zone AO,
Central Business District, Abuja.
Attention: **Mohammed Sale**
Email: mohammed.sale@msnenergy.com

If to the Buyer:

The Managing Director
South Atlantic LNG West Africa Limited
H20, 2/3 Onikoyi Lane, Parkview Estate,
Ikoyi, Lagos

Attention: Tunde A. Adesina
Email: t.adesina@brickwatergroup.com

Each notice, request or other communication shall be effective:

if given by email, when such email is transmitted to the email address of such Party specified above and the appropriate electronic answer back is received or delivery is electronically or otherwise confirmed; or

if hand delivered and duly acknowledged by an officer or employee of the recipient, or if by courier service upon receipt thereof by the applicable recipient within three (3) days from the date same was deposited with the courier company, or upon due confirmation of transmission by the recipient if sent by facsimile or electronic mail.

- 16.2 Notwithstanding anything to the contrary contained herein, a written notice or communication received and confirmed to have been received by either Party hereto will be adequate notice or communication to it notwithstanding that it was not sent to or delivered at the specified address.

17. BUSINESS CONDUCT AND ETHICS

- 17.1 Each Party with regard to operations and/or activities under this Agreement (i) warrants that such Party has not made, offered, or authorised, and (ii) covenants that such Party will not make, offer or authorise, any payment, gift, promise or other advantages, whether directly or through any other person or entity (including its affiliates and/or the directors and officers of such Party or its affiliates), to or for the benefit of any Public Official, any political party or any other individual or entity, where such payment, gift, promise or advantage would violate such warranty, or such covenant, or the Anti-Bribery Laws and Obligations.
- 17.2 Each Party shall as soon as practicable notify the other Party of any investigation or proceeding formally initiated by a public authority relating to an alleged violation of the applicable Anti-Bribery Laws and Obligations by such Party, or its affiliates, or any of their directors, officers, employees, personnel of any tier, or any service providers of such Party or its affiliates, concerning operations and activities under this Agreement. Such Party shall use reasonable efforts to keep the other Party informed as to the progress and disposition of such investigation or proceeding, except that such Party shall not be obligated to disclose to the other Party any information that would be considered legally privileged.
- 17.3 Each Party shall indemnify the other Party for any direct damages, losses, penalties, costs (including reasonable legal costs and attorneys' fees), and liabilities arising from, or related to the events underlying:

Such Party's admission of allegations made by a governmental authority concerning operations and/or activities under this Agreement that such Party has violated Anti-Bribery Laws and Obligations applicable to such Party; or

The final adjudication concerning operations and/or activities under this Agreement that such Party has violated Anti-Bribery Laws and Obligations applicable to such Party.

- 17.4 No Party is in any way authorised to take any action on behalf of the other Party that would result in an inadequate or inaccurate recording and reporting of assets, liabilities or any other transaction, or which would put such Party in violation of its obligations under the Anti-Bribery Laws and Obligations applicable to such Party.

18. OTHERS

18.1 NO THIRD-PARTY RIGHTS

No term of this Agreement shall be enforceable by any person who is not a Party to this Agreement, nor shall any such person have any rights under this Agreement.

NO CONSEQUENTIAL DAMAGES

- 18.2 Notwithstanding anything to the contrary in this Agreement, no Party shall be liable to the other Party for any indirect or consequential costs, losses or damages or for exemplary or punitive damages, which arise out of or relate to this Agreement or their performance or breach thereof. For the purposes of this Agreement, "direct costs, losses or damages" of a Party shall not include any loss of profits, any cost, loss or damage suffered or incurred by them in respect of any actions, claims, demands, damages, losses, costs, and expenses of its customers or any other third party.

CONFIDENTIALITY

- 18.3 Each Party covenants to keep secret any confidential information it may become possessed of or have knowledge of including the subject matter of this Agreement using at least the same standard of care it uses to protect its own confidential information and shall not disclose or divulge to any third party or to enable or cause any person to become aware of any confidential information obtained by reason of the performance of this Agreement save as the information already exist in the public domain or as required by Applicable Law.

ASSIGNMENT

- 18.4 No Party shall be entitled to assign any of its rights or obligations under this Agreement, unless all Parties have consented to such assignment in writing, provided that a Party (the "**Transferor**") may transfer by way of

security or create a security interest over this Agreement to or in favour of banks, financial institutions, credit agencies, lenders or other finance parties, as security for the Transferor's borrowing or financing arrangements.

WAIVER

18.5 No waiver by any Party hereto of any breach of this Agreement, of any kind or character whatsoever by the other Party, whether such waiver is direct or implied, shall be construed as a continuing waiver or consent to any subsequent breach of this Agreement on the part of the other Party.

SEVERABILITY

18.6 Each of the provisions hereof is severable and distinct from the others and, without prejudice to any other provision hereof, if any provision of this Agreement is prohibited or unenforceable or is rendered unlawful, invalid or illegal, such prohibition, unenforceability, unlawfulness, invalidity or illegality shall not, to the extent permitted by law, render unenforceable, invalid, unlawful or illegal or prohibit any other provision of this Agreement.

COUNTERPART

18.7 This Agreement may be executed in two or more counterparts each of which shall be deemed an original and all of which together shall constitute one instrument. Execution and delivery of this Agreement may be evidenced by email or electronic transmission.

IN WITNESS WHEREOF the Parties hereto have caused this Agreement to be duly executed by their authorised representatives the day and year first above written.

SIGNED for and on behalf of **MSN ENERGY RESOURCE LIMITED:**

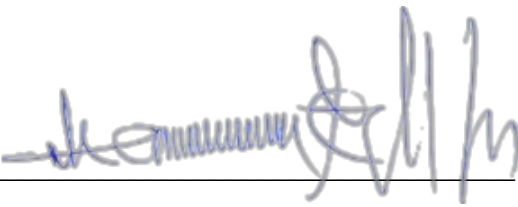
Signature: 

Name: MOHAMMED SALE

Position: MANAGING DIRECTOR

WITNESS:

Signature:



Name:

NKEM EGBUTA ESQ

Position:

COMPANY SECRETARY

SIGNED for and on behalf of **South Atlantic LNG West Africa Limited**

Signature:



Name:

Tunde Ademola Adesina

Position:

Managing Director

WITNESS:

Signature:



Name:

Nimatalla .A. Dabiri

Position:

Company Secretary

